

Amended Excerpts

1. Line 459 through 469:

459 (4) Notwithstanding Subsections (1) and (2), as part of a standard procurement process
 460 conducted by an institution of higher education described in Section 53H-1-102:

461 (a) the institution or an institution employee acting on the institution's behalf may:

462 (i) request a contribution, sponsorship, or other §→ [{value-added}] ←§ offering §→ **for**

462a **the institution's benefit** ←§ in the

463 institution's solicitation; or

464 (ii) consider and evaluate, as part of a solicitation's evaluation criteria, a contribution,
 465 sponsorship, or other value-added offering offered in a vendor's solicitation

466 response; and

467 (b) §→ **in response to a solicitation that requests a contribution, sponsorship, or other**

467a **offering for the institutions benefit,** ←§ a vendor may offer a contribution,

467b sponsorship, or other §→ [{value-added}] ←§ offering §→ **for the institution's benefit** ←§

467c in the

468 vendor's solicitation response.

469 [(4)](5) A person who engages in the conduct made unlawful under Subsection (1) or (2) is